



Appeal Decision

Site visit made on 4 August 2026

by **K Townend BSc MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 11 September 2026

Appeal Ref: 6010973

Cedars Farm, Broadwas, Worcester WR6 5NE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Staniel Stoilov against the decision of Malvern Hills District Council.
 - The application Ref is M/25/00216/FUL.
 - The development proposed is for a new detached dwelling with associated landscaping.
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Decision

1. The appeal is allowed and planning permission is granted for a new detached dwelling with associated landscaping at Cedars Farm, Broadwas, Worcester WR6 5NE, in accordance with the terms of the application, Ref M/25/00216/FUL, and the plans submitted with it, subject to the conditions set out in the Schedule of Conditions attached to this decision.

Preliminary Matters

2. The South Worcestershire Development Plan Review (the SWDPR 2026) was adopted by the Council on 25 March 2026 and replaces, in full, the South Worcestershire Development Plan, 2016 (the SWDP 2016). This appeal was received before the adoption of SWDPR 2026 and as such, at that time it was emerging policy and Policies from the SWDP 2016 were referred to in the decision notice.
3. I have received copies of the relevant adopted SWDPR 2026 policies and both main parties have had an opportunity to comment on them. I have, therefore, determined the appeal against the recently adopted policies.
4. Any reference to the National Planning Policy Framework (the Framework) in this decision, unless otherwise specified, will be in relation to the August 2026 version.
5. The appellant has submitted a signed Unilateral Undertaking (UU) providing a financial contribution towards affordable housing. I have addressed this in my reasoning below.
6. The address in the banner heading above is taken from the Council's decision notice as this better describes the location of the development.

Main Issues

7. The main issues are:
 - whether the appeal site is an appropriate location for the proposed development, having regard to the development strategy for the area and the accessibility of services and facilities; and

- whether a suitable mechanism is available to secure a contribution towards affordable housing.

Reasons

Location

8. The appeal site is a grassed paddock enclosed by fencing and hedges and between two existing dwellings, Cedars Farm and Oaklands. It is accessed via a shared driveway leading from a cul-de-sac which itself is off the A44.
9. Policy SWDPR 03 of the SWDPR 2026 sets the spatial development strategy for the area. Broadwas is defined, in Annex B, as a Category 2 settlement as it has at least two key services and access to at least a daily bus service for employment and shopping purposes. Subsection D of Policy 03 advises that the open countryside is defined as land beyond any Development Boundary, where development will be strictly controlled subject to other policies in the Plan. The appeal site lies outside the settlement boundary for Broadwas and is, therefore, considered to be within open countryside.
10. The appeal proposes a form of development which is not supported by any of the other policies within the SWDPR. The appeal would, therefore, be contrary to the recently adopted Plan, specifically policy SWDPR 03. Furthermore, the proposal would fail to comply with any of the types of development set out in Policy P2 of the Broadwas and Cotheridge Neighbourhood Plan, 2019 (the NP).
11. Policy SWDPR 03 of the SWDPR 2026 and Policy P2 of the NP are both broadly consistent with the Framework in seeking to restrict development outside settlements. However, the SWDPR 2026, albeit recently adopted, and the NP both predate the latest version of the Framework. Policy S5:1 of the Framework advises that only certain forms of development should be approved outside settlements. However, the forms of development listed in the policy should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework. The Framework is a material consideration to which I can give weight.
12. Even if I accept that the appeal site is not within a large built-up area, the Framework advises that the definition of settlements include areas defined as such in the development plan. Broadwas is defined as a settlement in the SWDPR 2026 and is, therefore, a settlement when considered against the definition in Annex B of the Framework.
13. Criterion (e) of Policy S5:1 is relevant in this case. It allows for limited infilling within groups of houses outside of defined development boundaries. The appeal site is close to the defined settlement boundary, between two existing houses and to the rear of a group of other houses. The appeal site is, therefore, within a group of houses, albeit that it is outside the development boundary. Moreover, as a proposal for a single dwelling between two existing properties, it would comprise limited infilling. It would not represent a standalone extension of residential built form into the open countryside, would be read in the context of the surrounding houses, and would not disrupt the established settlement pattern.
14. For these reasons, although the proposal would conflict with Policy SWDPR 03 of the SWDPR 2026, in that it is development outside the settlement boundary of

Broadwas, Policy S5:1(e) of the Framework would support the proposal. As the Framework is a material consideration in planning decisions, I can give weight to Policy S5:1(e) in determining the appeal.

15. That the Council can now show a five year housing land supply, with the required 20% buffer, would not reduce the weight of Policy S5:1(e) or mean that, under Policy HO7:1 of the Framework, that I should not support additional housing.
16. The Council seeks to argue that the location of the site is not sustainable and that this harm would substantially outweigh the benefits of the development. I acknowledge that there are limited services and facilities in the settlement and that, as noted by other Inspector's decisions referred to by the Council¹, the services and facilities would not meet all of the day-to-day needs of future occupiers. Moreover, I accept that there is limited public transport and that this might not offer convenient access to employment.
17. Nevertheless, Broadwas is defined in the SWDPR 2026 as a category 2 settlement. It is a settlement where Policy SWDPR 03 would support new housing, albeit the policy seeks to ensure that such development is only within the development boundary. Moreover, the public house, school, recreation field, and bus stops are all within walking distance of the appeal site and there is a doctor's surgery within cycling distance, even if this would only be suitable for competent and confident cyclists. Consequently, there are services and facilities in Broadwas that any new development would be capable of supporting, enhancing, and maintaining the vitality of, even if these are not all of the facilities that would be required for day-to-day living.
18. The reliance on the private car for access to other facilities and employment would be no different for the residents of the appeal site and the residents of existing housing in the village, including those on the road serving the appeal site and either side of the appeal site. Even if the bus services that serve the village are infrequent and not suitable for returning home from work after 17:00, there are bus services which, along with the options for cycling, would provide genuine alternative means of travel for the future occupants and minimise the need to travel by car.
19. The appeal decision at Tack Farm acknowledged that the future occupants would be reliant on the private car but that this was the case for the existing residents. Moreover, it acknowledges that Broadwas is a settlement suitable for limited growth which creates tension between allowing new housing in a settlement with limited services and facilities. This is similar to the appeal before me. However, the appeal at Tack Farm is materially different to the appeal before me in that it was further from the development boundary. Moreover, the appeal sites on the A44 and at Brook Farm were also further from the services and facilities and the development boundary than the site at Cedars Farm. None of the three appeals drawn to my attention are directly comparable to the current proposal and are, therefore, all materially different and justify a different conclusion on this appeal.
20. The context of the area, albeit outside the settlement, is immediately next to other houses and the addition of one further dwelling would not result in a significant amount of movement, even with daily comings and goings. Nevertheless, Policy

¹ APP/J1860/W/24/3354156, APP/J1860/W/25/3361765, APP/J1860/W/25/3365077

TR3:1(b) of the Framework still seeks to ensure that opportunities should be taken to utilise existing or proposed transport infrastructure and support walking, wheeling, cycling and public transport. In this case and given the material differences to the other appeals referred to by the Council, I find that the appeal site is in a suitable and sustainable location for the scale of the development and given the level of movement that would be likely to be generated.

21. The policies in the SWDPR 2026 are clear that the appeal site is not one where residential development would normally be permitted. Nevertheless, Policy S5:1(e) of the Framework allows for limited infilling within groups of houses. I have found that the appeal proposal would comply with this exception in the Framework and that it would also be in an appropriate location, having regard to the accessibility of services and facilities.
22. By reason of the appeal complying with Policy S5:1(e), I also find that it complies with Policy S3:1 of the Framework and is sustainable development. Consequently, although the proposal would conflict with Policy SWDPR 03 of the SWDPR 2026 there are other material considerations, specifically Policy S5:1(e) of the Framework, which supports the proposed development.
23. Moreover, as a suitable location for new housing in terms of the accessibility of services and facilities I find no conflict with Policy SWDPR 06 of the SWDPR 2026 which, amongst other matters, requires development proposals, taking into account their nature and location, to demonstrate that the proposed layout and design would minimise the need to travel by car. This would, therefore, not constitute an adverse effect that would substantially outweigh the benefits of the development.

Affordable housing

24. Policy SWDPR 19 of the SWDPR 2026 sets thresholds for where residential development would be required to contribute to the provision of affordable housing. Within Designated Rural Areas, such as the appeal site, a financial contribution is required on sites of less than five dwellings. Policy HO5:1(a)(i) of the Framework allows local plan policies to set affordable housing requirements for residential developments which are not major developments. Policy SWDPR 19 is, therefore, consistent with Policy HO5:1(a)(i) of the Framework.
25. The appellant has provided a signed and dated UU as the mechanism by which to deliver a financial contribution towards affordable housing in accordance with Policy SWDPR 19. I am content that the contributions would satisfy the tests for planning obligations set out in Regulation 122 of the Community Infrastructure Levy Regulations (2010). I, therefore, find that the submitted UU overcomes the Council's concerns in relation to this matter.
26. For the above reasons, the UU is a suitable mechanism to secure a contribution towards affordable housing and, therefore, the proposed development would comply with the requirements of Policy SWDPR 19 of the SWDPR 2026 which seeks to secure appropriate affordable housing.

Other Matters

27. Significant concerns have been raised by interested parties regarding the access to the proposed development and the lack of visibility for pedestrians. Access to

the site is between two existing dwellings along a track which already serves Cedars Farm and Oaklands. Nevertheless, the proposal is for a single dwelling and the level of vehicle movements associated with one house would not significantly increase vehicles using this access track, or the private road.

28. From my observations on site there is space for a vehicle to wait on the private road if a vehicle is leaving the site or neighbouring properties, and also space near Oaklands for a vehicle to wait for another already travelling up the track. Moreover, I also saw that there is forward visibility from the track and that pedestrians in the immediate area would only be likely to be residents and visitors to the properties served by the track and, therefore, fully aware of the limited space and potential for meeting a vehicle. Pedestrian movements around the houses either side of the access track would come close to the track but would also be able to hear any vehicle movements due to the gravel surface. The Council raised no objections on these grounds and I have seen no substantiated evidence that would lead me to a different conclusion.
29. The concerns raised by the interested parties regarding access for fire appliances are noted. However, even though the fire appliance access plan indicates that such vehicles would need to cross over the boundary with the property to the side of the access drive, the evidence before me is that a fire appliance was previously able to gain access to the property next to the appeal site. Although interested parties noted that damage was caused the access was capable of being used by a fire appliance. Any damage caused to boundary fences or hedges would be a civil matter between the parties. Access for fire appliances is, as noted by Hereford and Worcestershire Fire and Rescue Service, also a matter for Building Regulations, separate to the planning process.
30. Furthermore, any damage that may be caused by the construction of the proposed development would be a civil matter between the parties, as was any damage caused by the construction of Cedars Farm.
31. I have no compelling evidence that the appeal site is at risk of flooding. Moreover, the development would need to ensure that it would not increase the risk of flooding elsewhere by ensuring the run-off rate is restricted to greenfield rates. This matter can be controlled by a suitably worded condition to require the details of the drainage to be submitted.
32. Although I note that the distance between the proposed dwelling and the waste collection point would be beyond the travel distance recommended for a resident to carry their waste this is also the current situation for Cedars Farm and would not be sufficient justification for dismissing the appeal.
33. The proposed dwelling would be two storeys and situated behind and between existing dwellings. The proposal also includes balconies to the first floor windows in the front and rear elevations. However, the layout and design would ensure that there is not unacceptable overlooking or loss of light to the properties either side. The separation distance between the proposed dwelling and the two nearest properties in front of the plot is also such that the proposal would not cause unacceptable overlooking of either the dwellings or their gardens.
34. The potential for overlooking from large vehicles travelling along the access driveway is an existing situation and would not be significantly increased by the development. The loss of the outlook over the countryside would result in harm to

the occupants of the neighbouring properties. However, the loss of a private view would not be sufficient to justify dismissing the appeal.

35. The provision of one additional dwelling would also not substantially increase the amount of noise in the immediate area, even with the track being gravel surfaced. Construction noise can be limited through a condition to limit construction hours.
36. From the evidence before me, the appellant had served the appropriate notice on the owners of the driveway as part of the planning application process and lack of ownership of an access is not grounds to dismiss the appeal.
37. For the above reasons, none of the additional concerns raised by the interested parties would lead me to reach a different conclusion on this appeal.

Conditions

38. The Council has provided a list of suggested planning conditions, which I have considered against the Framework and advice contained in the Planning Practice Guidance. I have undertaken some minor editing and rationalisation in the interests of precision and clarity.
39. In addition to the standard condition which limits the lifespan of the planning permission I have specified the approved plans for the avoidance of doubt. However, I have not included the fire appliances access plan as this was submitted for information only and it would not be possible to enforce that this is the line that any such vehicle would take.
40. In order to ensure a satisfactory appearance of the development, I have included a condition requiring the materials to be submitted for approval and a condition to require the levels to be submitted. Moreover, to ensure that the surface water and foul drainage schemes are provided and maintained, so as not to increase the risk of flooding, I have also included a condition to this effect.
41. Given the residential nature of the immediate area, the local concerns and the restricted access, the condition to require the submission of a Construction Environmental Management Plan and to require the details of the hours of construction work to be submitted is necessary.
42. The condition requiring the provision of parking and turning space is also necessary in the interests of highway safety and to ensure the provision of off-street parking and turning for the development. I have also included a condition to secure cycle parking to encourage sustainability and alternative means of travel other than the car, in accordance with Policies SWDPR 06 and SWDPR 26 of the SWDPR 2026.
43. In the interests of protecting and enhancing ecology and biodiversity I have included a condition requiring the mitigation measures to be provided in accordance with the submitted ecology report. As required by Policy SWDPR 37 of the SWDPR 2026 the condition to secure at least 20% renewable or low carbon energy is also necessary and reasonable for the development.
44. However, given that the proposal is for a single dwelling and the whole of the appeal site would be either dwelling or domestic garden a condition to require the details of landscaping to be submitted is not necessary or related to the scale of the development. Moreover, a condition to require Compliance with the

accessibility requirements of Building Regulations is also not necessary as this is controlled through other permitting regimes.

45. Nonetheless, I have included the condition to require the details of the boundary treatments to be submitted for approval as these matters would influence the effect on the living conditions of the occupiers of the neighbouring properties and the character and appearance of the area. Such a condition is, therefore, necessary and related to the development.
46. Informatives are not added to appeal decisions. The appellant should be aware of these from the Council's evidence and I have, therefore, not included them.

Conclusion

47. For the above reasons, I find that the harm from the conflict with the development plan would not significantly and demonstrably outweigh the benefits that would arise from the development, when assessed against the policies in the Framework, taken as a whole. Accordingly, there are material considerations, which indicate a decision should be taken other than in accordance with the development plan.
48. For these reasons, the appeal should be allowed, subject to the conditions set out below.

K Townsend

INSPECTOR

SCHEDULE OF CONDITIONS

- 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following approved plans: 2426-04 revision 01, 2426-05 revision 01, 2426-08 revision 01, and 2426-09 revision 01.
- 3) No development shall take place until a Construction Environmental Management Plan Statement has been submitted to and approved in writing by the local planning authority. The Statement shall provide for:
 - i) the parking of vehicles of site operatives and visitors;
 - ii) loading and unloading of plant and materials;
 - iii) storage of plant and materials to be used in constructing the development;
 - iv) site operative facilities (office, toilets etc);
 - v) wheel washing facilities;
 - vi) measures to control the emission of dust and dirt during construction; and
 - vii) delivery, demolition and construction working hours.

The approved Construction Environmental Management Plan shall be adhered to throughout the construction period for the development.

- 4) No development shall take place until details of existing ground levels and proposed finished ground and floor levels, in relation to the existing dwellings immediately around the site, have been submitted to and approved in writing by the local planning authority. The development shall be carried out in accordance with the approved details.
- 5) No development, above slab level, shall commence until details of a scheme for the disposal of foul and surface water drainage has been submitted to and approved in writing by the local planning authority. The scheme shall be implemented in accordance with the approved details prior to the first occupation of the dwelling and retained in perpetuity.
- 6) No development, above slab level, shall commence until details of the materials to be used in the construction of the external surfaces of the dwelling hereby permitted have been submitted to and approved in writing by the local planning authority. The development shall be carried out in accordance with the approved details.
- 7) Prior to the first occupation of the dwelling hereby permitted space shall have been laid out within the site for three cars to be parked and for vehicles to turn so that they may enter and leave the site in a forward gear, in accordance with drawing number 2426-09 Revision 01. That space shall thereafter be kept available for such purposes in perpetuity.
- 8) Prior to the first occupation of the dwelling hereby permitted facilities for the secure storage of cycles shall have been provided within the curtilage of the dwelling, in accordance with the Council's standards. The cycle parking shall be retained in perpetuity.

- 9) Prior to the first occupation of the dwelling hereby permitted details of the boundary treatments to be erected shall be submitted to and approved in writing by the local planning authority. The boundary treatment shall be completed as approved before the dwelling is occupied.
- 10) Prior to the first occupation of the dwelling hereby permitted a scheme to secure at least 20% of the energy supply of the development from renewable or low carbon energy sources shall have been submitted to and approved in writing by the local planning authority. The approved scheme shall be implemented and thereafter retained in operation.
- 11) Prior to the first occupation of the dwelling hereby permitted the ecological mitigation measures shall be carried out in accordance with the details provided in the Sharpe Ecology 'Preliminary Ecological Appraisal & Biodiversity Net Gain Assessment- Issue V1.0, February 2025'.

**** END OF CONDITIONS ****